

Envigor Pty Ltd Support at Home Service Agreement



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Envigor Pty Ltd Support at Home Service Agreement

Entering into a service agreement

This is your Service Agreement for the Support at Home Services you will receive from us. If you are a Transitioned HCP Recipient, any current home care agreement with us is reviewed, varied and replaced in its entirety by the terms of this Service Agreement.

We will give you a copy of this Service Agreement before your Start Day, so you have time to consider the Service Agreement and an opportunity to seek independent legal, financial or other advice. We will also give you general information about Prices and Contributions to support you to make informed decisions about this Service Agreement and your Services.

We will ask you to sign this Service Agreement on or before your Start Day. If you accept services from us after receiving a copy of the Service Agreement, this Service Agreement will be in effect from your Start Day, even if you have not signed the Service Agreement.

Navigating this Service Agreement

This Service Agreement contains a number of different sections:

- The Key Terms table at the beginning of this Service Agreement, which is where you will find information that is specific to you.
- The standard terms, which are divided into a number of parts.
- The signing page, where you and we sign this Service Agreement.

- The Schedules at the back of this Service Agreement. If you see a reference number (such as Schedule 1, 2, 3 etc.), you can find out more by reading the Schedule marked with that number at the back of this Service Agreement.
- There is a dictionary of terms in 0, for any capitalised words and terms used in this Service Agreement.

If you speak a language other than English, you have a vision or hearing impairment, or you require any special assistance in accessing this Service Agreement, please let us know and we will assist you with arranging an interpreter or other supports to access the Service Agreement.

Cooling off period

There is a cooling off period where you may withdraw from this agreement. You can withdraw from this agreement anytime within 14 days of signing the agreement, so long as you have not received services from us. You may notify us (verbally or in writing) that you wish to withdraw from this Service Agreement.

Key Terms

Date of this Service Agreement <i>Insert date the Envigor as the Registered Provider and the Participant enter the agreement.</i>	30 th June 2026		
Annual Review Date for Agreement <i>If the agreement is for ongoing services, insert date the date for reviewing the Service Agreement (see clause 14)</i>			
Registered Provider (We, us) <i>Envigor's Provider's details</i>	Name: Envigor PTY Ltd ABN: 31 147 108 870 Address: PO Box 3325 Newmarket QLD 4051, Australia Phone: 1300 368 446 Email: info@envigor.com.au		
Participant (You, your) <i>Insert the Participant's details</i>	Name: Shirley Moran Address: 11 Cooroora Rise Pomona Q Phone: 0428089835 Email:		
Legal Personal Representative <i>Insert any Legal Representative's details, if they are entering into this agreement on behalf of the Participant, including selecting the legal authority and evidence from the dropdown menus and inserting any other details required and repeat as required.</i>	Name: Address: Phone: Email: Legal authority: Choose an item Evidence provided: Other (provide details below)		
Supporter(s) <i>Insert any registered Supporter(s) details, if applicable, and repeat as required</i>	Name: Address: Phone: Email:		
Guarantor(s) <i>Insert Individual's details for personal guarantee for clause 21</i>	Name: Address: Phone: Email:		
Service options, Start Date and End/Exit Date <i>Select one or more options as applicable. Note that Ongoing Services and End-of-Life Services are not available simultaneously.</i>	Services	Start Date	End Date
	☒ Ongoing Services	TBA	N/A
	☒ Assistive Technology Services		
	☒ Home Modification Services		

Enter the Start Date for each relevant option. Enter the End Date if applicable and known at entry.	☐ Additional Services		/N/A if ongoing
	☐ Restorative Care Services		
	☐ End-of-Life Services		
	If End Date is not known at entry, see Clause 14		
Classification Funding (for Ongoing Services only) Select the relevant Classification or 'not applicable' if the Participant is not receiving Ongoing Services. Note: For ongoing classifications, 10% will be deducted from your classification budget as the quarterly budget for care management.	Transitioned Level 3 \$25,233		
Quarterly Budget	\$6,291.01		
Access Approval	☒ Attached – Notice of Decision ☒ Attached - Support Plan		
Funding tier (for AT only) Select the relevant funding tier or 'not applicable' if the Participant is not receiving /assigned AT.	Not applicable		
Funding tier (for HM only) Select the relevant funding tier or 'not applicable' if the Participant is not receiving /assigned HM.	Not applicable		
Funding tier (for Assistance Dog Maintenance) Select the relevant funding tier or 'not applicable' if the Participant is not receiving /assigned.	☐ Assigned ☒ Not Applicable \$		
Services to be delivered. Service Category Document for Clinical - Allied health and other therapeutic services, Everyday Living Services for Home Maintenance and Repairs, Meal Delivery, Meal Prep, Assistive Technology &	Service Type (e.g. Home maintenance and repairs, Allied health and other therapeutic services)	Services (e.g. Gardening, Physiotherapist, Occupational Therapist)	Is an Associated Provider intended to deliver the Service?
	TBA	TBA	☐
			☐
			☐

Home Modifications (where Applicable), Indirect Transport, Community Respite, Therapeutic Services for Independent Living, Allied Health and Therapy - where an associated Provider is intended to deliver the service.		☐	
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Service Contributions <i>Financial Status</i>	You may be required to contribute to the Services you receive. Your Service Contribution Rate depends on your means and may change over time. You agree to pay the applicable Service Contributions at the rates prescribed by the Aged Care Act and as set out in your Services Australia Assessment (if any). ☒ Service Australia Assessment Received ☐ Services Australia Assessment pending – Default contribution rate applies until we receive your assessment. ☐ Means not disclosed. ☐ Pre-12 September 2024 Care Recipient. Contribution will be determined by Services Australia in accordance with the rules for Transitioning Care Recipients.		
	Individual Contribution Rate (Prices for services and contribution rates)	Clinical Supports	0%
		Independence Supports	5%
		Everyday Living Supports	17.5%
<i>Insert the Participant's Individual Contribution Rate for each Means Testing Category or, if not known at entry, enter 'TBC' and see clause 19</i>			
Interim Contribution Rate	Clinical Supports	0%	

Insert Interim Contribution Rate for each Means Testing Category if applicable otherwise enter 'N/A'	Independence Supports	NA
	Everyday Living Supports	NA
Fee Reduction Supplement	Has Services Australia assessed that you are eligible for a Fee Reduction Supplement? ☒ Not Applicable ☐ Service Australia Assessment Received ☐ Services Australia Assessment Pending	
Additional Services Fee	Any Additional Services Fee will be agreed between us and you and set out in your Care Plan and Budget.	
Default Interest Rate <i>Envigor's default interest rate for any unpaid Contributions or Fees</i>	10 % per annum	
Prices <i>Prices are set out in our Pricing Schedule. (see Schedule J). Note participant variance if known at the time of setting up the Agreement.</i>	The Price for is higher than the amount in our Pricing Schedule because _____ The Price for is lower than the amount in our Pricing Schedule because _____	
Price Increase <i>Method and Reason</i>	Our prices may be subject to regular pricing increases having regard to the cost of delivering Services to account for indexation and other cost increases such wage increases as regulated by Fair Work, and where and when directed by relevant Government Authority/Department. We will increase our Prices on or around 1 July each year. We have chosen this date to align with the financial year. The method we will use is the following pricing variation method. <i>New Price=Old Price × (New CPI / Old CPI)</i> CPI data is to be sourced from www.abs.gov.au and is to be based on Table 6401.0 - Consumer Price Index, Australia: All Groups - Weighted Average of Eight Capital Cities. We have adopted this method because it is reflective of indexation more broadly in the community. Additional Pricing detail and detail of the manner in which Prices are indexed and adjusted are set out in Part 3, Section 18.	
Transitioning from another Registered Provider? <i>Select yes or no and, if yes, insert the previous Registered Provider's business name</i>	Choose an item 	

Part one – rights and responsibilities

1 Your rights and responsibilities

- 1.1 You will receive Services from us under the terms of this Service Agreement until this Service Agreement ends under clause 15.
- 1.2 You, and any Supporter(s) or other persons involved in your care as notified to us, can be involved in decisions relating to your Funded Aged Care Services.
- 1.3 You must follow the terms of this Service Agreement. This includes that you agree to pay any Fees and Contributions referred to in this Service Agreement or that are otherwise payable under the Aged Care Act.
- 1.4 We will give you, within 7 days of a request from you, the following information and documents:
 - (a) a clear and simple presentation of the financial position of our registered provider entity;
 - (b) a copy of the most recent statement of the audited accounts of the Service Delivery Branch or, if the Service Delivery Branch is operated as part of a broader organisation, the most recent statement of the audited accounts of our organisation's aged care component (that includes the Service Delivery Branch), unless we are not required to prepare annual financial reports under the *Corporations Act 2001* (Cth), in which case this requirement does not apply to us.
- 1.5 In addition to any other responsibilities you have under this Service Agreement, you will:
 - (a) respect the rights and freedoms of other individuals, including our Aged Care Workers and other individuals accessing Funded Aged Care Services;
 - (b) treat our Aged Care Workers with respect and without experiencing exploitation, abuse, discrimination or harassment, including sexual harassment;
 - (c) let us know prior to any audio or visual surveillance being used in or around your home or any other place where you receive Services from us;
 - (d) give us enough current, correct and relevant information to enable us to partner with you to develop, deliver and review your Care Plan and Budget;
 - (e) give us enough current, correct and relevant information to enable us to claim funding for the Services delivered or proposed to be delivered, including any prescriptions or assessments required under government guidelines;
 - (f) accept responsibility for your own actions, including where you have made a decision which may expose you to risk;
 - (g) let us know when your needs change so that we can discuss this with you and make changes to your Services, as appropriate;
 - (h) let us know if you are changing providers and if so, the date you plan to end the Services with us.

2 Supporters and Legal Personal Representatives

- 2.1 If you have a Supporter, this person can support you to make decisions. However, being a Supporter does not give the Supporter rights to make decisions on your behalf.
- 2.2 Only a Legal Personal Representative can make decisions on your behalf. A Legal Personal Representative will only be able to make decisions to the extent they are authorised under the instrument or order giving them those powers.

- 2.3 If you have a Legal Personal Representative, we will ask you for the person's details and a certified copy of the document evidencing their authority to make decisions on your behalf.
- 2.4 We may also ask your Supporter and/or your Legal Personal Representative for reasonable evidence to confirm their identity and contact details, such as 100 points of identification.
- 2.5 If there are any changes to your decision making or Supporter arrangements, you need to let us know otherwise we will continue to rely on any information you have previously given us.

3 Our rights and responsibilities

- 3.1 We will provide the Services under the terms of this Service Agreement and in accordance with our obligations as a Registered Provider.
- 3.2 We will take reasonable steps to prevent damage being caused to your property by us, or our Aged Care Workers, in delivering Funded Aged Care Services to you.
- 3.3 We have a right to receive payment for the Services, in the form of your Contributions, any Fees, any Default Interest and applicable government funding, in accordance with the Prices, payment method(s) and timeframes set out in this Service Agreement.
- 3.4 If any Associated Providers are involved in the delivery of Funded Aged Care Services to you under this Service Agreement, we will remain responsible for ensuring the Services are delivered in accordance with the Aged Care Act and the Aged Care Quality Standards.

4 Statement of Rights

The Statement of Rights (set out in Schedule 1) outlines the rights of individuals accessing Funded Aged Care Services. As a Registered Provider, we must take all reasonable and proportionate steps to act compatibly with the Statement of Rights in the delivery of Funded Aged Care Services, taking into account that limits on rights may be necessary to balance:

- (a) competing or conflicting rights;
- (b) the rights and freedoms of other individuals, including our aged care workers and other individuals accessing Funded Aged Care Services;
- (c) compliance with other laws of the Commonwealth, or of a State or Territory, including the *Work Health and Safety Act 2011* (Cth).

5 Complaints and feedback

- 5.1 We encourage Participants, Supporters, Aged Care Workers and any other relevant individuals to give us feedback. You are entitled to make complaints about your Services without fear of reprisal. We will handle any complaints fairly and promptly.
- 5.2 You have a right to be supported by an advocate or other person of your choice, including when exercising or seeking to understand your rights.
- 5.3 0 is where you will find details of how to make a complaint (to us or the Complaints Commissioner) or give us feedback. This includes information about interpreter, accessibility and advocacy services.

6 Code of Conduct for Aged Care Services

The Code of Conduct describes how aged care providers, their governing persons (eg board members) and Aged Care Workers, must behave and treat people receiving Funded Aged Care Services. The Code of Conduct is in 0.

7 Aged Care Quality Standards

As a Registered Provider, we must conform with the strengthened Aged Care Quality Standards, as they relate to the Funded Aged Care Services we provide. You can find out more about the strengthened Aged Care Quality Standards by visiting the Aged Care Quality and Safety Commission's website: <https://www.agedcarequality.gov.au/older-people>

Part two – receiving services

8 Available services

- 8.1 The List of available services in 0 details each service that is specified in the Aged Care Service List. The information in the List of available services in 0 is general in nature. The Services you receive will be based on your assessed needs and your Access Approval (including any approved Service Type(s). Details of the Services you will receive will be set out in your Care Plan or Goal Plan (as relevant for Restorative Care), including a description of the Services.
- 8.2 If you request a Service from us that is not set out in your Care Plan or Goal Plan (as relevant), or which exceeds your available funding, if we agree to provide the Service you will need to pay for it as an Additional Service.
- 8.3 There are certain circumstances in which we may decline your request for a Service, including where:
- (a) the Service is not included in the Service List or it is an excluded service, and either we do not offer it as an Additional Service or you do not wish to purchase the Service as an Additional Service;
 - (b) the Service is not in accordance with your assessed needs, your Access Approval or the funding available in your Budget;
 - (c) we have not been able to obtain sufficient evidence to support the suitability of the Service for you, for example a relevant health practitioner assessment;
 - (d) the Service would place the health, safety or wellbeing of you or another person at risk or would result in us not being able to comply with our responsibilities under any law; or
 - (e) the Service involves an actual or perceived conflict of interest, for example engagement of a family member (except in the very limited circumstances where this is permitted), whether individually or through an agency or business.
- 8.4 Your Access Approval is attached to this Service Agreement as 0 (unless you are a Transitioned HCP Recipient, in which case you will not have an Access Approval unless and until you are re-assessed under Support at Home). If your Access Approval is revoked, you must let us know immediately and we will consider that you no longer need Support at Home Services and may terminate this Service Agreement under clause 15.4(a)(ii)(A).

9 Additional Services

- 9.1 From time to time you may request and we may agree to provide Additional Services.
- 9.2 If you request Additional Services, we will agree with you the scope of the Additional Services including the duration of the Additional Services and the Additional Services Fee.
- 9.3 Details of the Additional Services, including the Additional Services Fee, will be included in your Care Plan and/or your Budget as relevant.

10 Your Care Plan or Goal Plan (for Restorative Services)

- 10.1 We will engage with you (and your Supporters and other relevant people you tell us are involved in your care) to develop a Care Plan or Goal Plan on or before your Start Day, unless an exception applies, or you are a Transitioned HCP Recipient in which case we will review your existing Care Plan to align with Support at Home. Your Care Plan (or Goal Plan) will include relevant information, including details of your care needs, goals and preferences and the Services you will receive.

- 10.2 We will give you a copy of your Care Plan (or Goal Plan) once it is developed, any time it is updated and upon your request.
- 10.3 For Ongoing Services, we will review your Care Plan at least once every 12 months.

11 Care Management, Care Partners and wraparound/coordination Services

- 11.1 If you are receiving Ongoing Services we will provide Care Management to you at least once in each month where we also deliver other Services to you and your Care Management will be paid for out of the Care Management Account.
- 11.2 If you are receiving End of Life Services we will provide Care Management to you as required to effectively plan and coordinate your Services and your Care Management will be claimed from your End of Life Pathway funding.
- 11.3 If you are receiving Restorative Care Services we will provide Restorative Care Management to you as set out in your Goal Plan and your Restorative Care Management will be claimed from your Restorative Care Pathway funding.
- 11.4 If you are receiving Assistive Technology or Home Modification Services, we may provide wraparound/coordination services as needed and your wraparound/coordination services will be paid for from your Assistive Technology or Home Modification funding.

12 Late Cancellations and No Shows

- 12.1 A Late Cancellation occurs when you provide less than 2 business days' notice of a cancellation to a scheduled service. A 'no-show' occurs when you do not show up at the agreed place or at the agreed time of a scheduled service.
- 12.2 You (or your supporter) are expected to provide at least 2 days' notice that you need to cancel or reschedule an appointment via the pathway agreed between you and your care partner (or delegate).
- 12.3 If we have committed to deliver any Services under this Agreement and we are prevented, at no fault of our own, from delivering the Service, due to a Late Cancellation or No Show, we may charge the full Contribution and/or Fees and claim any government funding for the Service.
- 12.4 If you feel that you have reasonable grounds for a Late Cancellation or No Show, you can give us evidence in writing to substantiate your claim and we will consider this on a case by case basis. If we agree there were reasonable grounds for a Late Cancellation or No Show, we may agree to vary our claim for the Service and waive or refund a Contribution or Fee, at our discretion.

13 Temporarily stopping Services

- 13.1 You may wish to temporarily stop receiving the Services, for example if you are in hospital, going on holiday or accessing residential respite care. If you wish to temporarily stop receiving the Services, we ask that you give us 48 hours' notice, where possible.
- 13.2 If you temporarily stop receiving the Services, we will still provide Care Management Services to you.
- 13.3 If you do not receive any Services for an extended period (one year and 60 days), the government will reduce your funding to zero and we will consider that you no longer need Support at Home Services and may terminate this Service Agreement under clause 15.4(a)(ii)(A).

14 Review of this Service Agreement

- 14.1 For Ongoing Services, we will review this Service Agreement at least once every 12 months and upon your request.
- 14.2 As part of any review of this Service Agreement, we will give you an opportunity to participate in the review, consider whether any updates need to be made to the Service Agreement and, if necessary, vary the Service Agreement in accordance with clause 27.1

15 Permanent ceasing of Services

15.1 When will this Service Agreement end?

This Service Agreement will end on the End Date, or on the last End Date if there is more than one. Clauses 15.2 to 15.5 below explain how the End Date is determined in different circumstances.

15.2 Automatic ending of Services

- (a) If you are receiving Restorative Care Services, AT-HM Services and/or End-of-Life Services, the End Date for the relevant Services will be the End Date set out in the Key Terms, or any other End Date we agree in writing from time to time.
- (b) If you permanently exit the Support at Home Program:
 - (i) to move into ongoing residential aged care, you must notify us in writing as soon as possible (and at least before the date you enter ongoing residential aged care), including the date you intend to enter ongoing residential aged care, which will be your End/Exit Date for all categories of services;
 - (ii) due to your death, your End/Exit Date will be the date of your death.

15.3 If you want to end your Services with us

- (a) You can end any of your Services with us at any time by giving us 14 days' notice in writing.
- (b) If you notify us that you are ending your Services, the End/Exit Date for your Services will be the day your notice expires, unless you and we agree another End/Exit Date in writing.

15.4 If we want to end your Funded Aged Care Services

- (a) We may only cease the delivery of Funded Aged Care Services to you in the following circumstances:
 - (i) you cannot be cared for in the home or community with the resources available to us;
 - (ii) your condition has changed to the extent that:
 - (A) you no longer need the Funded Aged Care Services delivered by us or;
 - (B) your needs, as assessed by an approved needs assessor, can be more appropriately met by other types of Funded Aged Care Services;
 - (iii) you have:
 - (A) intentionally caused serious injury to an Aged Care Worker; or
 - (B) intentionally infringed the right of an Aged Care Worker to work in a safe environment;
 - (iv) you:

- (A) have not paid, for a reason within your control, any fee or contribution specified in this Service Agreement;
- (B) have not negotiated an alternative arrangement with us for payment of the fee or contribution; and
- (C) have no application for the fee reduction supplement in place;
- (v) you notify us in writing that you wish to move to a location where we do not deliver Funded Aged Care Services; or
- (vi) you notify us in writing that you no longer wish to receive Funded Aged Care Services from us.
- (b) If we decide that we are ending your Funded Aged Care Services, we will give you at least 14 days' notice in writing. The End/Exit Date for your Services will be the day our notice expires, unless you and we agree another Exit Date in writing.

15.5 If we want to end your Additional Services

We may end your Additional Services at any time for any reason by giving you at least 14 days' notice in writing. The End/Exit Date for your Services will be the day our notice expires, unless you and we agree another End/Exit Date in writing.

15.6 What happens when this Agreement ends?

When this Service Agreement ends:

- (a) we will issue you a final monthly statement and invoice for Contributions and Fees;
- (b) you will remain responsible for paying any Contributions or Fees you owe us for Services you received from us up to and including the Exit Date;
- (c) if you are moving to another Registered Provider:
 - (i) you need to let us know who the new provider is and the date you enter into a service agreement with them;
 - (ii) we will, within 28 days of the date you notify us that you have entered into a service agreement with another Registered Provider, provide a notification to your new provider; the notification will include your Support at Home fund financial balances and on request, information about services delivered to assist the incoming provider with care planning and care management.
 - (iii) if you have any Unspent HCP Funds:
 - (A) we will, within 28 days of your Exit Date, issue a notice to you (or to your Legal Personal Representative, or your estate if you have died);
 - (B) if you are moving to another Registered Provider, we will pay any Participant Portion of Unspent Funds to you within 70 days of the Exit Date;
 - (C) if you are leaving the Support at Home Program, we will pay any Participant Portion of Unspent Funds to you or your estate, as appropriate;
 - (D) we will return any Commonwealth Portion of Unspent HCP Funds to Services Australia.

Part three – financial terms

16 Your funding

16.1 Funding amount

- (a) The amount of funding the government will contribute to your Services will depend on the type of Services you receive, your financial status, your Classification, your funding level, your funding tier, any applicable supplements and the Services you receive.
- (b) If there are any changes to your funding amount, we will consult with you about varying this Service Agreement and/or your Budget to reflect your new funding amount.

16.2 Notional home support accounts and transitional accounts

- (a) The government will establish one or more notional home support accounts to allocate your funding. The notional home support account(s) will be credited with your applicable funding amounts and debited when we make claims for Services delivered.
- (b) In addition to a home support account(s), if you are a Transitioned HCP Recipient, you may also have a home care account which records the Commonwealth Portion of any Unspent HCP Funds, which will be debited for services delivered, in the way prescribed, including the order of use of funds as detailed in the Aged Care Rules 2025.

16.3 Care management account

- (a) All Participants will have 10% of their funding for Ongoing Services deducted from their funding and credited to our Care Management Account.
- (b) Certain Participants may be eligible for an additional care management supplement. If this applies, the additional amount will be credited to our Care Management Account.
- (c) We draw on the pooled funds in our Care Management Account to deliver Care Management to all Participants to whom we provide Ongoing Services.

16.4 Unspent HCP Funds

Transitioned HCP Recipients who had Unspent HCP Funds as of 30 October 2025 retain these funds for use under Support at Home. This includes any Participant Portion of Unspent HCP Funds we hold on your behalf and any Commonwealth portion of Unspent HCP Funds, which may be held by the Commonwealth, by us, or both).

17 Your Budget

17.1 Preparation and review of your Budget

- (a) We will partner with you and/or your Supporter to develop your Budget, having regard to your goals and assessed needs, preferences, the resources available and the Services required to support your aged care assessed care needs. We will help you and/or your Supporter to understand your Budget.
- (b) Your Budget will outline the funding available, the costs of your Services, your Contributions and any Fees.
- (c) We will review and, if necessary, revise, your Budget if there is a change (or proposed change) to your Funded Aged Care Services or their associated costs or your Individual Contribution Rate, or if you ask us to do so.
- (d) We will give you your Budget as soon as practicable after we have all the necessary information to complete it or, if you have asked us to revise your Budget, within 14 days of your request.

- (e) If you are receiving Restorative Care Services, your Budget will be included in your Goal Plan.

17.2 Interim funding

- (a) While you are waiting for your Support at Home funding, the government may allocate Interim Funding (minimum service offer- MSO) to you at a rate of 60% of the total funding for your Classification.
- (b) If you have been allocated Interim Funding, we will partner with you to discuss your Interim Funding allocation and develop a quarterly budget that aligns with the Interim Funding and your aged care assessed care needs. The intention of interim funding is to support your access to critical care services to assist you to remain living at home until your full funding is allocated.
- (c) When your full funding becomes available:
 - (i) the remaining 40% of your funding for the approved classification will be allocated to you going forward (this will not be backdated);
 - (ii) we will review your quarterly budget and Care Plan to include further Services to utilise the full funding amount.

17.3 Rollover of funding

- (a) For Ongoing Services:
 - (i) we will encourage you to fully utilise your Budget;
 - (ii) if you do not fully utilise your Budget for a quarter, unspent Budget will automatically roll over up to the greater of \$1,000 or 10% of your quarterly budget, including any Supplements;
 - (iii) rolled over Budget will not be available immediately – it can take up to 61 days after the last day of the previous quarter for the funds to become available.
- (b) For the Restorative Care Pathway, End of life Pathway and the AT-HM Scheme, your Budget only applies for the duration of the Services and there is no rollover of funding after the Services end.

18 Prices

- 18.1 You will pay your Individual Contribution Rate for each Service you receive based on our Prices. The published Prices for services we deliver, as current at the date of this Service Agreement, are in 0.
- 18.2 Generally, we will charge you for Services at the Prices in 0. The Price we will charge you for the Services you will receive will be in your Budget as relevant. If your Services change from time to time, the Prices will be based on our published Prices at the time, and we will update your Budget and Care Plan in consultation with you.
- 18.3 If, in limited circumstances and subject to our policies, we agree that you can directly source Services from an Associated Provider (for example sourcing certain goods, services or consumables) we may charge an overhead on the Price of any Service delivered by the Associated Provider and the overhead will not exceed 10% of the price for the Services agreed with the Associated Provider.
- 18.4 Any request for reimbursement pursuant to Section 18.3 must be obtained in advance, in writing, and must align with the Services and Supports specified in your Care Plan and associated budget. Failure to follow this approval process will, upon assessment, likely result in the reimbursement request being declined.

- 18.5 However, from time to time we may agree a different Price to our published Prices after consulting with you. If we need to charge you a higher amount to the published Price for a particular Service, for example if you have a particular request or need, we will agree the relevant Price with you (after explaining the reason for the higher Price) and record the agreed Price in your Budget as relevant.
- 18.6 Our Prices may be subject to regular increases to account for indexation and other cost increases such wage increases as regulated by Fair Work; Fair Work wage increase directions can occur at any point of the year, when these do occur you will be advised in writing.
- 18.7 Where and when directed by relevant Government Authority/Department.
- 18.8 We will increase our Prices on or around 1 July each year. We have chosen this date to align with the financial year.
- The method we will use is the following pricing variation method.
 - $\text{New Price} = \text{Old Price} \times (\text{New CPI} / \text{Old CPI})$
 - CPI data is to be sourced from www.abs.gov.au and is to be based on Table 6401.0 - Consumer Price Index, Australia: All Groups - Weighted Average of Eight Capital Cities.

We have adopted this method because it is reflective of indexation more broadly in the community.

19 Contributions, Fees and interest

19.1 Your Contributions

- (a) Under the Aged Care Act 2024, the Government fully funds Clinical Support services however, participants are required to contribute to the cost of Independence and Everyday Living services. The exact contribution rate, if payable, is based on the results of an assessment of your income and assets by Services Australia.
- (b) Your contributions may change in accordance with the rules set by the Government including when your financial circumstances change. We will talk to you if there are any changes to your contribution. We encourage you to apply to have your contributions reviewed if your financial circumstances change.
- (c) You must pay a Contribution for Services you receive based on your Individual Contribution Rate for the relevant Service and the Price of the Service. There are no Contributions payable for Clinical Supports. You will only pay a Contribution for Services you receive (or you are taken to receive under clause 12).
- (d) Your Individual Contribution Rate, if known at the time of entering this Service Agreement, will be set out in the Key Terms.
- (e) Your Individual Contribution Rate may change from time to time and you agree to pay all Contributions payable at the Individual Contribution Rate determined for you at the time you receive the relevant Service.
- (f) If your Individual Contribution Rate has not been determined (or we have not received this information) at the time of entering this Service Agreement, once we receive detail of your Individual Contribution Rate, we will calculate any:
 - (i) underpayment of Contributions (backdated to your Start Day), for which we will issue an invoice that you must pay; and
 - (ii) overpayment of Contributions (backdated to your Start Day), which we will repay to you.

- (g) If you do not provide your income and assets information to Services Australia, you will be a Means Not Disclosed Participant and your Individual Contribution Rate will be set at the maximum level.
- (h) There are lifetime caps that apply to Contributions, which differ depending on your circumstances and change over time with indexation. If you reach the lifetime cap relevant to you, Services Australia will notify you and us we will not charge you any further Contributions once we receive that notice.
- (i) For Transitioned HCP Recipients, there may be annual caps that apply to your Contributions depending on your circumstances. If an annual cap applies, we will not charge any Contributions during any period where we have been notified that an annual cap applies to you and has been reached. We will recommence charging Contributions at the start of the next annual period.

19.2 Your Fees

In addition to your Contributions, you must pay:

- (a) a Compensation Payment Fee, if a Compensation Payment Reduction applies to you;
- (b) the Fee for any Additional Services you receive from us, which will be agreed between you and us before you receive the Additional Services.

19.3 Interest on unpaid Contributions and Fees

If any Contribution or Fee payable by you under this Service Agreement is not paid on the due date, we may charge default interest on the outstanding amount at the Default Interest Rate, accruing daily and compounding monthly.

19.4 Payment terms

You must pay Contributions and any Fees and Default Interest payable under this Service Agreement fortnightly by direct debit under the terms of the Direct Debit Service Agreement and Form in 0, or such other method notified by us in writing from time to time.

19.5 Financial hardship

- (a) If you are experiencing financial hardship, or there has been a change to your financial circumstances that you are concerned may affect your ability to pay our Fees, please let us know and we will give you further information and guidance.
- (b) You may apply via Services Australia for a fee reduction supplement using the approved Services Australia form. You must let us know if you have applied for a fee reduction supplement.
- (c) If you apply via Services Australia for a fee reduction supplement:
 - (i) while the application is processing we will not charge you any Contributions from the date the application is evidenced of being assessed;
 - (ii) If approved, the fee reduction supplement is paid to the provider, and your contributions are reduced by that amount while the fee reduction supplement applies to you, and;
 - (iii) if it is decided by Services Australia that you are not entitled to a fee reduction supplement, we will collect your unpaid Contributions for the period beginning on the day your application was made.

20 Statements

- 20.1 We will give you a monthly statement for each calendar month you receive Services from us no later than the last day of the following month.

- 20.2 For Ongoing Services, the Restorative Care Pathway and/or the End-of-Life Pathway, we will issue a final statement after the End/Exit Date for the relevant Services.

21 Guarantee and indemnity

- 21.1 This clause is not a condition precedent to entry to our Service.
- 21.2 We may seek to enforce this guarantee and indemnity if you do not pay any amount payable by you under this Agreement on or before the time when it is due or you otherwise fail to comply with the terms of this Agreement.
- 21.3 You and the Guarantor acknowledge and agree that this Guarantee is reasonably necessary to protect our legitimate business interests given the value of outstanding amounts owing under this Agreement may be significant if the amounts remain unpaid.
- 21.4 In this clause:
- (a) where a Guarantor comprises two or more persons this Guarantee binds those persons jointly and severally; and
 - (b) a Guarantor in this Guarantee includes that person's executors and administrators, successors and permitted assigns.
- 21.5 In consideration of us making available our care and services to you:
- (a) the Guarantor unconditionally and irrevocably guarantees to us your compliance with this Agreement, including the punctual payment of all amounts payable by you under this Agreement;
 - (b) the Guarantor agrees that if you do not pay all amounts payable by you under this Agreement on or before the time when they are due for payment, the Guarantor will immediately pay all amounts payable by you under this Agreement to us (including interest on all moneys owing as calculated under this Agreement), whether or not a demand has been made by us to you;
 - (c) the Guarantor unconditionally and irrevocably indemnifies us against all Loss, damage, costs (including legal costs on an indemnity basis) and expenses we suffer as a result of your failure to comply with your obligations under this Agreement, all amounts payable by you under this Agreement (or any part thereof) not being recoverable from you, or any liability to pay all amounts payable by you under this Agreement not being enforceable against you; and
 - (d) the Guarantor must give us information that we reasonably request to verify that the Guarantor has the financial capacity to comply with their obligations under this Guarantee.
- 21.6 We may assign our rights under this Guarantee by giving the Guarantor 14 days' written notice.
- 21.7 This Guarantee will:
- (a) be a continuing guarantee and indemnity and will not be considered partially or wholly discharged by the payment at any time of part of the amounts owing under this Agreement until all your obligations are paid in full; and
 - (b) not be affected by:
 - (i) the granting to you or another person, any time to pay or other consideration;
 - (ii) any variation of any document between you and us; or
 - (iii) us postponing for any time or from time to time the exercise of any of our powers or rights against you or the Guarantor.

and nothing will be construed as a waiver or compromise of our rights to recover your full liability as against the Guarantor under this Guarantee.

- 21.8 You must promptly (and, in any event, within 10 days of receiving notice from us) provide to us a Guarantee validly signed as a deed by another person acceptable to us, acting reasonably, (the **'New Guarantor'**) if any Guarantor for the time being:
- (a) breaches this Guarantee (including by failing to provide information requested under clause 21.5(d) and fails to remedy that breach within 10 days of receiving notice from us;
 - (b) becomes bankrupt or insolvent; or
 - (c) ceases to have sufficient financial capacity to perform its obligations under this Guarantee in our reasonable opinion,
- and the New Guarantor will be a Guarantor for the purposes of this Agreement when the Guarantee signed by that New Guarantor is provided to us.

22 Security

- 22.1 You and each Guarantor irrevocably and unconditionally provide this Personal Guarantee as security for the payment of all moneys owing by you to us under this Agreement
- 22.2 We may seek recovery through general legal avenues if needed.
- 22.3 You and each Guarantor agree to grant and authorise us to take all actions reasonably required to give full effect to this Personal Guarantee, including executing all documents and performing all acts necessary to ensure its validity, enforceability and continuing operations.
- 22.4 You and each Guarantor agree to pay, on demand all cost, charges and expenses (including full legal costs on a solicitor and client basis) incurred or payable by us in connection with;
- (a) The negotiation, preparation, execution or variation of the Personal Guarantee;
 - (b) The enforcement, attempted enforcement or preservation of the Personal Guarantee;
 - (c) The action taken to recover amounts owing by you.
- 22.5 All such costs form part of the amounts owing by you to us under this Agreement and are recoverable as liquidated debt as part of the Personal Guarantee.

23 GST

If any supply made by us or on our behalf under this Service Agreement or any variation to it is a taxable supply for the purposes of the GST Act, then in addition to any amount payable to us elsewhere in this Service Agreement, we will be entitled to recover from you an additional amount on account of GST, an amount of our GST liability in respect of each supply which will be recoverable at the same time as the amount payable for any supply.

Part four – general terms

24 Privacy

- 24.1 We must ensure the protection of Personal Information relating to you, including as follows:
- (a) the Personal Information must not be used other than:
 - (i) for a purpose connected with the delivery of a Funded Aged Care Service to you by us; or
 - (ii) for a purpose for which the Personal Information was given by or on your behalf to us;
 - (b) except with your consent, the Personal Information must not be disclosed to any other person other than:
 - (i) for a purpose connected with the delivery of a Funded Aged Care Service to you by us; or
 - (ii) for a purpose connected with the delivery of a Funded Aged Care Service to you by an Associated Provider or another Registered Provider; or
 - (iii) for a purpose for which the Personal Information was given by or on your behalf to us;
 - (iv) for the purpose of complying with an obligation under the Aged Care Act.
- 24.2 Our Privacy Policy details how we handle your Personal Information. From time to time we may ask for your consent to use your Personal Information for certain purposes and/or to disclose your Personal Information to another person.
- 24.3 Nothing in this Service Agreement prevents Personal Information being given to a court, or to a tribunal, authority or person having the power to require the production of documents or the answering of questions, in accordance with a requirement of that court, tribunal, authority or person.
- 24.4 While we respect your privacy and autonomy, there may be occasions where we or one of our Aged Care Workers consider it necessary to enter your home or any other place where Services are being delivered or take other action with your safety and wellbeing in mind (such as contacting emergency services), without speaking with you first. You consent to us taking reasonable steps as necessary in an emergency or situation where we reasonably believe your safety or wellbeing is at significant risk.

25 Workplace health and safety

- 25.1 Your home or any other place where Services are delivered will be a workplace for our Aged Care Workers and subject to relevant workplace health and safety laws.
- 25.2 We may need to consult with you about conducting inspections of your home or any other place where Services are delivered to assess any risks.
- 25.3 You must take reasonable steps to identify and notify us of any risks associated with our Aged Care Workers delivering Services to you.
- 25.4 We may at any time suspend Services where there is a risk to health and safety of our Aged Care Workers or any other person. If we do so, we will consult with you about continuity of care while your Services are suspended.

26 Equipment

- 26.1 If your Services include the provision (loan or purchase) of equipment we may agree terms with you about the use, maintenance and ownership of the equipment.
- 26.2 The following general terms apply any equipment provided (loan or purchase) in connection with your Services, unless you and we agree otherwise in writing:
- (a) We will ensure that the equipment that is sourced, supplied, provided or used by us is safe and meets your needs at the time the Service is delivered to you.
 - (b) You are responsible for maintaining the equipment in good repair in line with the manufacturer's instructions, including paying the costs of any servicing reasonably required.
 - (c) When the relevant Services connected with the equipment end, or the loan arrangement ends (whatever happens sooner), you will retain ownership of any equipment you have paid for in full, however you will not have any ownership of, or ongoing rights to use, any equipment that was on loan to you.
 - (d) You will be responsible for any loss, damage, costs of repairs and/or replacement of equipment we provide under this Agreement, except where:
 - (i) the equipment has been damaged as a result of a cause independent of human control;
 - (ii) the equipment has been lost or damaged as a result of an act, default or wilful omission by one of our Aged Care Workers;
 - (iii) at the time the equipment is supplied to you, it is not of acceptable quality within the meaning of section 54 of the Australian Consumer Law.

27 General

27.1 Variation

This Service Agreement may be varied

- (a) by us if the variation is necessary to implement the GST Act, we have given you reasonable notice in writing about the variation and the variation is not inconsistent with the GST Act or the Aged Care Act; or
- (b) by mutual consent of the parties if there has been adequate consultation about the variation between us and you, we have obtained your consent to make the variation and the variation is not inconsistent with the GST Act or the Aged Care Act.

27.2 Electronic signing and counterparts

- (a) We each consent to the use of electronic signature, which identifies the person signing and indicates their intention to sign this Service Agreement.
- (b) We can each sign a copy of this Service Agreement and together the two copies will form one agreement. Each part can be signed using an electronic signature, by electronic acceptance via an app or platform, or by delivering a scanned copy of the signed Agreement to the other party electronically.

27.3 Notices

Any notice required to be given in writing under this Service Agreement:

- (a) by us to you, may be given to you, your Legal Personal Representative and/or your Supporter;

- (b) by you to us, may be given to us or your Care Partner,

using the details in the Key Terms or any updated details we give each other in writing from time to time.

27.4 **Costs**

- (a) We won't charge you any legal fees or administrative costs for preparing this Service Agreement.
- (b) If you choose to engage a lawyer, financial advisor, advocate or any other service to assist you with this agreement, you will pay the costs of those services yourself. You must also pay for any administrative costs such as internet usage and postage.

27.5 **Governing law and jurisdiction**

- (a) This Service Agreement is governed by and is to be interpreted in accordance with the laws applicable in the Australian State or Territory in which the Services are delivered.
- (b) Each party accepts the non-exclusive jurisdiction of the courts of the Australian State or Territory in which the Services are delivered and any courts which have jurisdiction to hear appeals from any of those courts.

27.6 **Assignment**

- (a) This Service Agreement is personal to you and cannot be assigned to any other person.
- (b) We may assign our rights and obligations under this Service Agreement by giving you notice in writing.

27.7 **Severance**

If any provision of this Service Agreement is found to be unenforceable, illegal or void, the remaining provisions of this Service Agreement will continue to be enforceable to the greatest extent permitted by law.

27.8 **Interpretation**

In this Service Agreement, unless the context otherwise suggests:

- (a) a reference to a time in which something needs to happen is a reference to that time in the state, territory or other place where that obligation is to be performed;
- (b) words and expressions defined in the Aged Care Act, if not already defined in this Service Agreement have the meanings given to them in the Aged Care Act.

27.9 **Indemnity**

You agree to the extent permitted by law to release and indemnify us against any Loss which you suffer, sustain or incur in connection with:

- (a) performance of the care or services under this Agreement; and
- (b) any claim made by or on behalf of a third party in relation to or arising out of performance of the care or services under this Agreement.
- (c) The indemnity under this clause is reduced to the extent that the Loss arose from, or was contributed to, by any unlawful or wilfully negligent act or omission by us or a Staff Member.
- (d) This clause will survive expiration or termination of this Agreement.

Signing pages

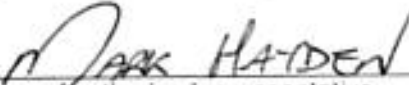
Executed as an agreement

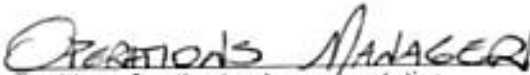
Registered Provider

Signed on behalf of Envigor Pty Ltd by its duly authorised representative who by their execution warrants their authority to execute this instrument:

Envigor Pty Ltd by its authorised representative


Signature of authorised representative


Name of authorised representative


Position of authorised representative

Participant

I, the Participant, acknowledge by signing this Service Agreement that:

- I have received information to enable me to make informed decisions about my Funded Aged Care Services, including information about fees and contributions;
- I have been given the time I need to consider and review my options and seek external advice if I wish to do so;
- I have been involved in the development and negotiation of this Service Agreement;
- if requested by me, a supporter, family member, carer or advocate of mine, or any other person significant to me, was present during the development and negotiation of this Service Agreement; and
- I have been helped to understand the terms of this Service Agreement

Select who is signing this Service Agreement (the Signatory):

- **Participant self** ☐
- **Duly Appointed Attorney** ☐

Signed by the Participant self or on behalf of the Participant by their duly appointed attorney being duly authorised in this behalf (who by their execution warrants that the appointment has not been revoked);	Participants Name	SHIRLEY MARRAN
	Signatory's Name, if not the participants self	
	Signature of Signatory	x S. g. maran
	Address of Signatory	11 COORCOOR ROAD POMONA

Guarantor

I, the/a Guarantor, acknowledge by signing this Agreement that:

- I understand the provisions of this Agreement as they relate to my role as Guarantor, including the guarantee and security provisions;
- I understand these provisions are binding on me in my personal capacity;
- I have had the opportunity to seek advice if I wish to do so.

Name of Guarantor

Signature of Guarantor

Schedule 1 – Definitions

Access Approval	means an approval made by the System Governor under section 65 of the Aged Care Act for an individual to access Funded Aged Care Services and any approved Service Groups, Classification Types and Service Types for the individual. Your Access Approval will be set out in your notice of decision from the System Governor.
Additional Services	means any services you request and we agree to provide that will be paid for you from your own funds.
Aged Care Act	means the <i>Aged Care Act 2024</i> (Cth) and includes any amendments or replacements of this Act.
Aged Care Quality Standards	means the Aged Care Quality Standards made under Part 6 of the Aged Care Rules, as amended from time to time.
Aged Care Rules	means the <i>Aged Care Rules 2025</i> (Cth) and includes any amendments or replacements of these rules.
Aged Care Worker	means: 1 an individual employed or otherwise engaged (including as a volunteer) by us to deliver Funded Aged Care Services; or 2 an individual who: (a) is employed or otherwise engaged (including as a volunteer) by an Associated Provider of ours; and (b) is engaging in conduct under the Associated Provider's arrangement with us relating to our delivery of Funded Aged Care Services.
Aged Care Service List	means the list referred to in subsection 8(1) of the Aged Care Act, as amended from time to time.
Assistive Technology and Home Modifications (AT-HM) Scheme	means the Scheme providing government funding for assistive technology and/or home modifications for eligible Participants.
Assistive Technology and Home Modifications (AT-HM) Services	means goods and services delivered under the Assistive Technology and Home Modifications (AT-HM) Scheme and includes associated wraparound coordination and administrative services.
Assistive Technology Services	means the goods and services available under the AT-HM Scheme.
Associated Provider	means a third party engaged in the delivery of Funded Aged Care Services to you.
Budget	means the budget we create in consultation with you under Clause 17, which will form part of this Service Agreement.
Care Management	means a service involving a suite of activities that contribute to Participant's overall safety, wellbeing, health and quality of life and which may be direct (eg speaking or meeting with you or your Supporter) or indirect (eg completing certain activities on your behalf).
Care Management Account	means a notional account established and maintained by Services Australia where 10% of quarterly budget for Ongoing Services (and any additional care management supplement funding) is set aside and

	pooled together with all other participants within a service delivery branch.
Care Partner	means an Aged Care Worker who provides Care Management to you in relation to Ongoing Services, Restorative Care Services or End-of-Life Services.
Care Plan	means the care and services plan we will develop in consultation with you as required by the provisions of the Aged Care Act and Aged Care Rules, or for Transitioned HCP Recipients we will review for Support at Home, and which forms part of this Service Agreement.
Classification	means your Support at Home classification, including: 1 Ongoing Classification (Classifications 1-8 or Transitioned HCP Classification 1-4); 2 Short-term classifications under the AT-HM Scheme, Restorative Care Pathway and/or End-of-Life Pathway).
Classification Type	means the classification types prescribed under the Aged Care Act, being ongoing, short-term or hospital transition.
Clinical Supports	means a Means Testing Category which includes the services described as clinical supports in the Aged Care Service List.
Code of Conduct	means the Aged Care Code of Conduct made under section 14 of the Aged Care Act, a copy of which is included in 0.
Commonwealth Portion of Unspent HCP Funds	means any portion of Unspent HCP Funds that was contributed by the Commonwealth and held by the Commonwealth in respect of a Transitioning HCP Recipient prior to 1 November 2025 that has not been spent.
Compensation Payment Fee	means the amount you may be asked to contribute to the cost of your Services if you receive compensation for an illness or injury that caused you to need services.
Compensation Payment Reduction	means the amount by which the subsidy we receive for Services delivered to you will be reduced if you are required to pay a Compensation Payment Fee.
Complaints Commissioner	means the person appointed from time to time as the Complaints Commissioner of the Aged Care Quality and Safety Commission constituted under section 356 of the Aged Care Act.
Contributions	means the contributions you must pay towards the cost of the Services, which includes any Interim Contributions will be charged at your Individual Contribution Rate or the Interim Contribution Rate, as applicable at the time you receive the relevant Service.
Default Interest Rate	means the Default Interest Rate set out in the Key Terms.
Direct Debit Request	means the Direct Debit Request contained in Schedule 7, or such other form we may use from time to time.
Direct Debit Service Agreement	means the Direct Debit Service Agreement contained in Schedule 7 such other form of direct debit service agreement we may use from time to time.

End-of-Life Pathway	means a short-term pathway providing in-home services and supports for participants with a prognosis of three months or less to live who meet eligibility criteria.
End-of-Life Services	means services provided under the End-of-Life Pathway.
Everyday Living	means a Means Testing Category which includes the services described as everyday living supports in the Aged Care Service List.
End/Exit Date	means the date you cease receiving any one or more type of Services from us, as calculated under clause 15.
Fees	means any fees or charges payable under this Service Agreement or the Aged Care Act (other than Contributions), including any Compensation Payment Fee and the Fee for any Additional Services and any Default Interest.
Funded Aged Care Services	means a service included in the Aged Care Service List delivered to an individual who can access the service through a Service Group as referred to in subsection 9(2) of the Aged Care Act and for which funding is paid under the Aged Care Act.
Goal Plan	means the plan we will develop in consultation with you, if you are receiving Restorative Care Services, and which forms part of this Service Agreement.
Guarantee	means the Guarantee forming part of this Agreement in clause 21 and 22.
Guarantor	means the person or persons named as a guarantor in the Key Terms
HCP Class	means a class for Transitioned HCP Recipients accessing Ongoing Services, as defined under the Aged Care Rules.
Home Care Package (HCP)	means a package of home care services delivered under the Home Care Packages Program prior to 1 November 2025.
Home Care Packages (HCP) Program	means a government program that provided funding for packages aimed at supporting people to remain living at home. The Home Care Packages Program ceases/ceased on 31 October 2025.
Home Modification Services	means home modification goods and services delivered under the AT-HM Scheme.
Independence	means a Means Testing Category which includes services described as independence services under the Aged Care Service List.
Individual Contribution Rate	means the percentage determined by Services Australia as your individual contribution rate for the means testing category the service is in, for a Funded Aged Care Service delivered to you on a particular day.
Interim Contribution	means an amount we may ask you to contribute towards the cost of your Services unless and until you have an Individual Contribution Rate determined by Services Australia.
Interim Contribution Rate	means the rate we allocate for you which will be used to calculate any Interim Contributions, as detailed in the Key Terms or as notified by us to you in writing from time to time.
Late Cancellation	means when you provide less than 2 business days' notice of a cancellation of a scheduled Service.

Legal Personal Representative	means a person authorised under state or territory laws to make decisions, including legal and financial decisions, on behalf of the Participant, for example an attorney appointed under an enduring power of attorney or a guardian or administrator (as relevant) appointed by a court or tribunal, whose authority has not been revoked.
Means Not Disclosed Participant	means a person accessing Funded Aged Care Services who has not disclosed their financial information to Services Australia or a participant in relation to whom the System Governor has determined that they have means not disclosed status in accordance with the Aged Care Rules.
Means Testing Category	means one or more means testing categories described in the Aged Care Act for a Service Type delivered in a home or community setting and for the purposes of this Service Agreement includes Clinical Supports, Independence and Everyday Living.
No Show	means you were required to be present for a scheduled Service, you were not present at the agreed place or time, and you did not cancel the scheduled Service.
Ongoing Classification	means the classification type ongoing for the Service Group home support under section 194-5 of the Aged Care Rules.
Ongoing Services	means services delivered to Participants under the Ongoing Classification.
Participant	means an individual who receives Funded Aged Care Services from us through the Support at Home Program and under the terms of a service agreement and includes you, the person named as the Participant in the Key Terms.
Participant Portion of Unspent HCP Funds	means any contribution to Unspent HCP Funds that you contributed that remains available to use under Support at Home.
Personal Guarantee	Means a legally binding promise made by an individual (the Guarantor) to take personal responsibility for someone else's debt or obligation if that person does not pay.
Price	means the amount we charge or propose to charge for goods or services in the Aged Care Service List inclusive of any government subsidy and Contribution, as at the time the Service is delivered.
Privacy Act	means <i>Privacy Act 1988</i> (Cth).
Privacy Policy	means our Privacy Policy, which is available at on our website or via your Care Partner.
Registered Provider	means a registered provider as defined under section 11(2) of the Aged Care Act.
Restorative Care Pathway	means a short-term pathway providing intensive allied health and/or nursing services and supports aimed to help participants regain function and/or manage new or changing age related conditions.
Restorative Care Services	means services provided under the Restorative Care Pathway.
Restorative Care Management	means a service involving specialist coordination services for Participants receiving Restorative Care Services.

Service Agreement	means this agreement setting out the terms of your funded aged care services with us.
Service Delivery Branch	means a place of business of ours through which we deliver Funded Aged Care Services to individuals through the Service Group home support, assistive technology or home modifications.
Service Group	means a service group described in the Aged Care Act and for the purpose of this Service Agreement includes home support, assistive technology or home modifications.
Service Type	means a service type prescribed by the Aged Care Rules, which for convenience are set out in 0.
Services	means the services you receive from us under this Service Agreement, including any Ongoing Services, Restorative Care Services, End-of-Life Services, AT-HM Services and Additional Services, as set out in your Care Plan or Goal Plan as relevant.
Services Australia	means the government agency that delivers the social services portfolio, including any agency performing that function from time to time.
Statement of Rights	means the Statement of Rights made under section 23 of the Aged Care Act, as amended from time to time.
Start Day	means the day you commence receiving any one or more type of Services from us, as set out in the Key Terms or as agreed in writing between you and us.
Support at Home Program	means a program of services to provide government funding to assist older Australians live independently at home for longer by providing access to services, equipment, and home modifications.
Supporter	means a person registered by the System Governor as a supporter of the Participant under section 37 of the Aged Care Act.
System Governor	means the Secretary of the Department of Health and Aged Care, as that department is known from time to time.
Transitioned HCP Recipient	means a Home Care Package recipient who transitioned to Support at Home on 1 November 2025. This also includes older people who were on the National Priority System prior to 1 November 2025 but had not received a Home Care Package.
Unspent HCP Funds	means any unspent funds that a Transitioned HCP Recipient had under the Home Care Package prior to 1 November 2025 that has not been spent and includes the remaining balance of any: (a) Participant Portion of Unspent HCP Funds; and (b) any Commonwealth Portion of Unspent HCP Funds, whether held by us or the Commonwealth.

Schedule 1 – Statement of Rights

Independence, autonomy, empowerment and freedom of choice

- 1.1 An individual has a right to:
- (a) exercise choice and make decisions that affect the individual's life, including in relation to the following:
 - (i) the funded aged care services the individual has been approved to access;
 - (ii) how, when and by whom those services are delivered to the individual;
 - (iii) the individual's financial affairs and personal possessions; and
 - (b) be supported (if necessary) to make those decisions, and have those decisions respected; and
 - (c) take personal risks, including in pursuit of the individual's quality of life, social participation and intimate and sexual relationships.

Equitable access

- 1.2 An individual has a right to equitable access to:
- (a) have the individual's need for funded aged care services assessed, or reassessed, in a manner which is:
 - (i) culturally safe, culturally appropriate, trauma-aware and healing-informed; and
 - (ii) accessible and suitable for individuals living with dementia or other cognitive impairment; and
 - (b) palliative care and end-of-life care when required.

Quality and safe funded aged care services

- 1.3 An individual has a right to:
- (a) be treated with dignity and respect; and
 - (b) safe, fair, equitable and non-discriminatory treatment; and
 - (c) have the individual's identity, culture, spirituality and diversity valued and supported; and
 - (d) funded aged care services being delivered to the individual:
 - (i) in a way that is culturally safe, culturally appropriate, trauma-aware and healing-informed; and
 - (ii) in an accessible manner; and
 - (iii) by aged care workers of registered providers who have appropriate qualifications, skills and experience.
- 1.4 An individual has a right to:
- (a) be free from all forms of violence, degrading or inhumane treatment, exploitation, neglect, coercion, abuse or sexual misconduct; and
 - (b) have quality and safe funded aged care services delivered consistently with the requirements imposed on registered providers under this Act.

Respect for privacy and information

- 1.5 An individual has a right to have the individual's:
 - (a) personal privacy respected; and
 - (b) personal information protected.
- 1.6 An individual has a right to seek, and be provided with, records and information about the individual's rights under this section and the funded aged care services the individual accesses, including the costs of those services.

Person-centred communication and ability to raise issues without reprisal

- 1.7 An individual has a right to:
 - (a) be informed, in a way the individual understands, about the funded aged care services the individual accesses; and
 - (b) express opinions about the funded aged care services the individual accesses and be heard.
- 1.8 An individual has a right to communicate in the individual's preferred language or method of communication, with access to interpreters and communication aids as required.
- 1.9 An individual has a right to:
 - (a) open communication and support from registered providers when issues arise in the delivery of funded aged care services; and
 - (b) make complaints using an accessible mechanism, without fear of reprisal, about the delivery of funded aged care services to the individual; and
 - (c) have the individual's complaints dealt with fairly and promptly.

Advocates, significant persons and social connections

- 1.10 An individual has a right to be supported by an advocate or other person of the individual's choice, including when exercising or seeking to understand the individual's rights in this section, voicing the individual's opinions, making decisions that affect the individual's life and making complaints or giving feedback.
- 1.11 An individual has a right to have the role of persons who are significant to the individual, including carers, visitors and volunteers, be acknowledged and respected.
- 1.12 An individual has a right to opportunities, and assistance, to stay connected (if the individual so chooses) with:
 - (a) significant persons in the individual's life and pets, including through safe visitation by family members, friends, volunteers or other visitors where the individual lives and visits to family members or friends; and
 - (b) the individual's community, including by participating in public life and leisure, cultural, spiritual and lifestyle activities; and
 - (c) if the individual is an Aboriginal or Torres Strait Islander person—community, Country and Island Home.
- 1.13 An individual has a right to access, at any time the individual chooses, a person designated by the individual, or a person designated by an appropriate authority.

Schedule 2 – Code of Conduct

When delivering funded aged care services to individuals, Registered Providers, Aged Care Workers and responsible persons of Registered Providers must:

- (a) act with respect for individuals' rights to freedom of expression, self-determination and decision-making in accordance with applicable laws and conventions; and
- (b) act in a way that treats individuals with dignity and respect, and values their diversity; and
- (c) act with respect for the privacy of individuals; and
- (d) deliver funded aged care services in a safe and competent manner, with care and skill; and
- (e) act with integrity, honesty and transparency; and
- (f) promptly take steps to raise and act on concerns about matters that may impact the quality and safety of funded aged care services; and
- (g) deliver funded aged care services free from:
 - (i) all forms of violence, discrimination, exploitation, neglect and abuse; and
 - (ii) sexual misconduct; and
- (h) take all reasonable steps to prevent and respond to:
 - (i) all forms of violence, discrimination, exploitation, neglect and abuse; and
 - (ii) sexual misconduct.

Schedule 3 – List of available services

Service Type	Services
Clinical supports	
Nursing care	- Registered nurse clinical care - Enrolled nurse clinical care - Nursing assistant clinical care - Nursing care consumables
Allied health and therapy	- Aboriginal or Torres Strait Islander Health Practitioner assistance - Aboriginal or Torres Strait Islander Health Worker assistance Allied health assistance - Podiatry - Social work Speech pathology - Diet or nutrition Physiotherapy - Psychology - Exercise physiology - Occupational therapy - Counselling or psychotherapy - Music therapy
Nutrition	Nutrition supports
Care management	Home support care management
Restorative care management	Home support restorative care management
Independence	
Personal care support in the home or community	- Assistance with self care and activities of daily living - Assistance with self administration of medications - Continence management (non clinical)
Social support and community engagement	- Group social support - Individual social support - Accompanied activities - Cultural support - Digital education and support - Assistance to maintain personal affairs - Expenses to maintain personal affairs
Therapeutic services for independent living	- Acupuncture - Chiropractics - Diversional therapy - Remedial massage - Art therapy - Osteopathy
Home or community general respite	- Flexible respite - Community and centre based respite
Transport	- Direct transport (driver and car provided) - Indirect transport (taxi or rideshare service vouchers)
Assistive technology and home modifications	- Assistive technology - Managing body functions items (non loan) - Managing body functions items (loan) - Self care items (non loan) - Self care items (loan) - Mobility items (non loan) - Mobility items (loan) - Domestic life items (non loan) - Domestic life items (loan) - Communication and information management items (non loan) - Communication and information management items (loan) - Assistive technology prescription and clinical support - Home modifications - Home modifications items - Home modifications prescription and clinical support
Everyday living	
Domestic assistance	- General house cleaning - Laundry services - Shopping assistance
Home maintenance and repairs	- Gardening - Assistance with home maintenance and repairs - Expenses for home maintenance and repairs
Meals	- Meal delivery - Meal preparation

Schedule 4 – Pricing Schedule

Support at Home

Effective from November 1, 2025

	Unit	Day 6am - 8pm Mon - Fri	Evening 8pm - Midnight Mon - Fri	Night Midnight - 6am Mon - Fri	Saturday	Sunday	Public Holiday
Registered Nurse	Hourly rate	\$226.79	\$253.47	\$262.80	\$333.51	\$373.48	\$426.80
Nursing Assistant (LSA)	Hourly rate	\$121.60	\$186.01	\$214.58	\$243.15	\$243.15	\$328.97
Personal Care	Hourly rate	\$121.60	\$186.01	\$214.58	\$243.15	\$243.15	\$328.97
Social support and community engagement	Hourly rate	\$121.60	\$186.01	\$214.58	\$243.15	\$243.15	\$328.97
Respite	Hourly rate	\$121.60	\$186.01	\$214.58	\$243.15	\$243.15	\$328.97
Domestic assistance	Hourly rate	\$121.60	\$186.01	\$214.58	\$243.15	\$243.15	\$328.97
Meal preparation	Hourly rate	\$121.60	\$186.01	\$214.58	\$243.15	\$243.15	\$328.97
Direct transport Up to 5 km	Trip per hour	\$127.60	NA	NA	\$249.15	\$249.15	\$334.97
Direct transport Up to 10 km	Trip per hour	\$133.60	NA	NA	\$255.15	\$255.15	\$340.97
Direct transport Up to 25km	Trip per hour	\$151.60	NA	NA	\$273.15	\$273.15	\$358.97
Direct transport Up to 50km	Trip per hour	\$181.60	NA	NA	\$303.15	\$303.15	\$388.97
Direct transport Up to 100km	Trip per hour	\$241.60	NA	NA	\$363.15	\$363.15	\$448.97
Direct transport Over 100km	Trip per hour	\$301.60	NA	NA	\$423.15	\$423.15	\$508.97

Envigor Pricing Schedule

Support at Home

Effective from November 1, 2025

	Unit	Price
Allied health therapy assistant	Hour	\$145
Counsellor or Psychotherapist	Hour	\$217
Dietitian or Nutritionist	Hour	\$210
Exercise physiologist	Hour	\$205
Occupational therapist	Hour	\$210
Physiotherapist	Hour	\$198
Podiatrist	Hour	\$194
Psychologist	Hour	\$239
Social worker	Hour	\$219
Speech pathologist	Hour	\$222
Chiropractor	Hour	\$195
Art therapy	Hour	\$200
Diversional therapy	Hour	\$200
Osteopathy	Hour	\$195
Remedial massage	Hour	\$181
Accupuncture	Hour	\$186
Care management - clinical	Hour	\$227
Care management - non clinical	Hour	\$160
Restorative Care management	Hour	\$227

Schedule 5– Complaints and feedback

Our complaints and feedback processes

If you would like to give feedback or make a complaint, you can speak to any of our Aged Care Workers or use the methods below:

- (a) Phoning or emailing your local Care Partner or Care Services Manager directly
- (b) Online: <https://envigor.com.au/contact>
- (c) By Mail to:
Envigor Pty Ltd
PO Box 3325
NEWMARKET QLD 4051

Making a complaint to the Aged Care Complaints Commissioner

The Aged Care Complaints Commissioner receives complaints about aged care services under the Act. Complaints can be made:

- (a) Online: <https://www.agedcarequality.gov.au/making-complaint/lodge-complaint>.
- (b) By phone on 1800 951 822.
- (c) Or if you need an interpreter you can phone the Translating and Interpretation Service on 131 450 and ask them to put you through to the Aged Care Quality and Safety Commission on 1800 951 822.
- (d) For hearing or speech impaired TTY users phone 1800 555 677 then ask for 1800 951 822.
- (e) For speak and listen users phone 1800 555 727 then ask for 1800 951 822.
- (f) For internet relay users connect to the National Relay Service at <https://internet-relay.nrsccall.gov.au/> and enter 1800 951 822.
- (g) In writing to:

Aged Care Complaints Commissioner
GPO Box 9819
Brisbane QLD 4001

Aged Care Advocacy

You may seek assistance or support from an independent advocacy service such as:

- (a) Queensland - Aged and Disability Advocacy Australia - phone 1800 818 338.

Schedule 6 – Direct Debit Agreement Service Agreement and Form

Request and Authority to debit	Your surname: <u>McRAN</u> Your given names: <u>SHIRLEY</u> "you, your" request and authorise: Envigor Pty Ltd ABN 31 147 108 870 (Direct Debit ID 448560) to arrange a debit from your nominated account to pay for the Contributions and Fees highlighted below. This debit or charge will be arranged by Envigor's financial institution and made through the Bulk Electronic Clearing System Framework (BECS) from your nominated account and will be subject to the terms and conditions of the Direct Debit Service Agreement.						
Amount of debit	Any amount Envigor has deemed payable by you. OR The amount specified in the invoice we have sent you, for payment on a due date. OR \$_____ (insert specified amount) continuing until cancellation.						
Frequency of debit	Fortnightly	☒					
Contributions and Fees	Contributions	☒					
	Additional Services Fees	☒					
	Compensation Payment Fee	☒					
	Interest on unpaid Contributions, Fees and any other amounts owing	☒					
Your account to be debited	Name/s on account	<u>S McRAN</u>					
	Financial institution name	<u>ANZ</u>					
	BSB number	<table border="1" style="display: inline-table;"> <tr> <td style="width: 20px; height: 20px;"></td> <td style="width: 20px; height: 20px;"></td> <td style="width: 20px; height: 20px;"></td> <td style="width: 20px; height: 20px;"></td> <td style="width: 20px; height: 20px;"></td> <td style="width: 20px; height: 20px;"></td> </tr> </table>					
Account number	<u>4622 3911 3691 2907</u> <u>11/29</u>						
Your contact details	Address	<u>11 CARRARA RISE</u> <u>PORTLAND</u>					
	Email						
	Phone						

	My preferred contact method is ☒ by email ☐ to my address											
Confirmation	<i>I acknowledge that this direct debit agreement is governed by the terms of the Service Agreement, BECS and the Direct Debit Service Agreement and that my account details will only be used for the purpose of payment of recurrent Contributions and Fees as provided for in my Service Agreement.</i> <i>By signing and/or providing us with a valid instruction in respect to your Direct Debit Request, you confirm that:</i> <i>• you are authorised to operate the nominated account; and</i> <i>• you have understood and agreed to the terms and conditions set out in this Direct Debit Request and in your Direct Debit Service Agreement.</i> Signed in accordance with the account authority on your account: Signature: <u>A. J. G. Moran</u> Contact details: As above. Date: <u>30/6/26</u>											
Second account signatory (if required)	Signed in accordance with the account authority on your account: Signature: _____ <table border="1" data-bbox="472 1241 1401 1562"> <tr> <td data-bbox="472 1241 634 1304">Name</td> <td data-bbox="634 1241 1401 1304"></td> </tr> <tr> <td data-bbox="472 1304 634 1367">Address</td> <td data-bbox="634 1304 1401 1367"></td> </tr> <tr> <td data-bbox="472 1367 634 1430">Email</td> <td data-bbox="634 1367 1401 1430"></td> </tr> <tr> <td data-bbox="472 1430 634 1493">Phone</td> <td data-bbox="634 1430 1401 1493"></td> </tr> <tr> <td data-bbox="472 1493 634 1562">Date</td> <td data-bbox="634 1493 1401 1562">____/____/____</td> </tr> </table>		Name		Address		Email		Phone		Date	____/____/____
Name												
Address												
Email												
Phone												
Date	____/____/____											

Direct Debit Service Agreement

This is your Direct Debit Service Agreement with us. It explains what your and our obligations are when undertaking a direct debit arrangement and forms part of the terms and conditions of your Direct Debit Request.	
Debiting your account	By signing the Direct Debit Request, you request and authorise us to arrange for funds to be debited from your account. You should refer to the Direct Debit Request, the Service Agreement and this Direct Debit Service Agreement for the terms of the arrangement between us and you. We will only arrange for funds to be debited from your account as authorised in the Direct Debit Request. The payment will be deducted from your nominated account on the payment due date. If your payment due date falls on a non-banking day, it will be processed on the next banking day. If you are unsure when a debit has been or will be processed, ask your financial institution.
Amendments by us	We may amend this Direct Debit Service Agreement by giving you at least 14 days notice.
How to cancel or change Direct Debits	You may only change, stop or defer a debit payment, or terminate this Direct Debit Service Agreement, by providing us with at least 7 days' written notice to: Email: billings@envigor.com.au Address: PO Box 3325, NEWMARKET QLD 4051 Or Arranging it through your own financial institution. Your financial institution and you must advise us in writing of any changes to your debit payment arrangement. If you cancel this Direct Debit Service Agreement, you are still required to pay the Contributions and Fees under the Service Agreement.
Your obligations	It is your responsibility to ensure there are sufficient clear funds available in your account to allow a debit payment to be made in accordance with the Direct Debit Request. If there are insufficient clear funds in your account to meet a debit payment: • you may be charged a fee and/or interest by your financial institution; • you may also incur contributions or fees imposed or incurred by us; and • you must arrange for the debit payment to be made by another method; or • you must arrange for sufficient clear funds to be in your account by an agreed time so that we can process the debit payment. You should check your account statement to verify amounts debited from your account are correct.
Dispute	If you believe there has been an error in debiting your account, you should notify us directly. Alternatively you can notify your financial institution. If we conclude as a result of our investigations that your account has been incorrectly debited we will respond to your query by arranging for your financial institution to adjust your account (including interest and charges). We will also notify you in writing the amount that your account has been adjusted. If we conclude as a result of our investigations that your account has not been incorrectly debited we will respond to your query by providing you with reasons and any evidence for this finding in writing.
Accounts	You should check: • with your financial institution whether direct debiting is available from your account, as this option is not always available; • your account details which you have provided to us are correct by checking them against a recent account statement; and • with your financial institution before completing the Direct Debit Request if you have any queries about how to complete the Direct Debit Request.
Privacy	We will keep any information (including your account details) in your Direct Debit Request confidential and in accordance with our Privacy Policy and will only be disclosed at your request or at the request of the Financial Institution in connection with a claim made to an alleged incorrect or wrongful debit, or otherwise as required by law.
Notice	For all matters relating to this Direct Debit Service Agreement, you should write to the Service outlined in the Key Terms.

	We will notify you by sending a notice to your preferred contact address outlined in the Direct Debit Request or Key Terms. Any notice will be deemed to have been received on the second banking day after sending.
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Defined terms in this Direct Debit Service Agreement

account means the account held at your financial institution from which we are authorised to arrange for funds to be debited.

banking day means a day other than a Saturday or a Sunday or a public holiday listed throughout Australia.

debit day means the day that payment by you to us is due.

debit payment means a particular transaction where a debit is made.

Direct Debit Request means the written, verbal or online request between us and you to debit funds from your account.

Direct Debit Service Agreement means this direct debit request service agreement between you and us.

us or we means the Registered Provider detailed in the Key Terms (the Debit User) you have authorised by requesting a Direct Debit Request.

you means the customer who has signed or authorised by other means the Direct Debit Request.

your financial institution means the financial institution nominated by you on the Direct Debit Request at which the account is maintained.

Schedule 7 – Access Approval

To be attached (*but not for Transitioned HCP Recipients*) if it is available